

Shyama Devi v. State of U.P.

Allahabad High Court · Division Bench · 15 July 2022 · Writ-C No. 19479 of 2022 · Writ - C No. 19479 of 2022 · **Writ disposed without merits; petitioner relegated to Para 6.8 objection with eight-week stay of coercive recovery.**

HEADNOTE

A writ seeking to quash a recovery citation of Rs. 3,09,300 was disposed without examining merits. On the distribution licensee's statement, the High Court granted liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing within the next four weeks, and stayed coercive action for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Shyama Devi petitioned the Allahabad High Court to quash a recovery citation dated 5 May 2022 issued by respondent no. 3 for Rs. 3,09,300 plus other charges, and to restrain further recovery. Counsel for respondent no. 4, the Power Distribution Corporation, stated on instructions that the petitioner could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand as statutory alternate remedy

HOLDING

A writ challenging a recovery citation may be disposed without examining merits by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law after hearing, with a time-bound stay of coercive recovery pending that disposal. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against a recovery citation disposed without merits; petitioner directed to file a Para 6.8 objection for time-bound reasoned disposal after hearing, with stay of coercive action. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION AND DEMAND OF RS. 3,09,300

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1